

26NNCV01241 26NNCV01241

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Case Number: 26NNCV01241 Hearing Date: July 16, 2026 Dept: E

Case No: 26NNCV01241

Hearing Date: 07/16/2026 – 8:30 a.m.

Trial Date: UNSET

Case Name: OMAIRA MANGUAL v. BANK OF AMERICA, N.A.; LOSS AND PREVENTION SERVICES; and COASTLINE RECOVERY SERVICES

[TENTATIVE RULING –
DEMURRER]

TENTATIVE RULING

Plaintiff, Omayra Mangual, filed a verified petition on 2/20/2026.

On 5/8/2026, Defendants' demurrer was sustained, and Plaintiff's motion for leave to file a first amended complaint was granted.

eCourt indicates that Plaintiff's First Amended Verified Complaint was filed on 5/8/2026; however, a stamp on the First Amended Verified Complaint (FAVC) indicates that it was received on 4/20/2026.

Plaintiff's FAVC is brought against Defendants – (1) Bank of America, N.A.; (2) Loss and Prevention Services; and (3) Coastline Recovery Services.

Defendants bring the instant demurrer targeted at the FAVC.

Defendants' counsel, Jessica E. James, attaches a declaration to Defendants' demurrer.

James explains how on May 27, 2026, she contacted Plaintiff by email to inform her that Defendants intended to file a demurrer to the FAVC and requested a time to meet and confer. (James Decl., ¶ 3.) On May 29, 2026, Plaintiff had not responded to James' email, so she sent a follow-up email to Plaintiff requesting a brief call to confer on Defendants' anticipated demurrer. (James Dec., ¶ 4.) On June 1, 2026, Plaintiff responded to James' email with a request that Defendants send their objections to the FAVC via email, and that same day James replied to Plaintiff's email and detailed Defendants' reasons for demurring to the FAVC. (James Decl., ¶ 5.)

James further explains that as of the time of filing her declaration [6/5/2026], Plaintiff has not yet responded to her June 1, 2026 email. (James Decl., ¶ 6.) James then concludes that the parties could not reach an agreement which would resolve the objections raised in Defendants' demurrer. (Id.)

In relevant part of Plaintiff's opposition, Plaintiff argues that although she had received Defendants' written objections on June 1, 2026, before she had an opportunity to respond, Defendants filed their demurrer on June 5, 2026. (Mangual Decl., ¶ 7.)

Plaintiff argues that James' characterization that the parties "were unable to resolve their disagreement over the deficiencies in the First Amended Complaint" is misleading and not accurate because Plaintiff did not have an opportunity to respond to the written objections. (Mangual Decl., ¶ 8.)

"Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. If an amended complaint, cross-complaint, or answer is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a demurrer to the amended pleading." (CCP, § 430.41(a); *emph added.*)

" A determination by the court that the meet and confer

process was insufficient shall not be grounds to overrule or sustain a demurrer.” (CCP, § 430.41(a)(4).)

Here, since the parties did not sufficiently meet and confer, the Court orders the parties to meet and confer in accordance with CCP § 430.41. Therefore, the Court plans to continue the instant demurrer hearing. Moving counsel shall file and serve a supplemental declaration complying with CCP § 430.41 no later than nine court days prior to the continued hearing date.

Further, the Court notes that on 7/10/2026, after Defendants submitted a reply, Plaintiff submitted a document entitled “Plaintiff’s Notice of New Evidence And Supplemental Declaration of Omayra Mangual In Support of Her Opposition To Defendant’s Demurrer to the First Amended Complaint” (Notice of New Evidence).

The Court notes that Plaintiff’s submission of the Notice of New Evidence appears to be in violation of CCP § 1005(b).

The Court reminds Plaintiff that although she is entitled to represent herself in propria persona, self-represented parties are entitled to no greater consideration than other litigants and attorneys. (In re Marriage of Falcone & Fyke (2008) 164 Cal.App.4th 814, 830.)

The Court to hear argument on when the new hearing date shall be scheduled.